AQUARIA AI LLC

TERMS AND CONDITIONS OF USE

Effective Date: March 9, 2026

PLEASE READ THESE TERMS AND CONDITIONS CAREFULLY BEFORE USING THE AQUARIA AI APPLICATION. BY ACCESSING OR USING THE APPLICATION IN ANY MANNER, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREE TO BE LEGALLY BOUND BY THESE TERMS AND CONDITIONS. IF YOU DO NOT AGREE TO THESE TERMS, YOU MUST IMMEDIATELY CEASE ALL USE OF THE APPLICATION.

1. PARTIES AND ACCEPTANCE

These Terms and Conditions ("Agreement") constitute a legally binding contract between you ("User" or "you") and Aquaria AI LLC, a limited liability company organized and existing under the laws of the State of New Jersey ("Aquaria AI," "we," "us," or "our"), governing your access to and use of the Aquaria AI mobile and web application, including all features, content, and services offered therein (collectively, the "App").

By accessing, downloading, installing, or using the App in any way, you affirmatively agree to be bound by this Agreement in its entirety. This Agreement is effective upon your first use of the App and remains in full force for the duration of your use. Your continued use of the App following any modification to this Agreement constitutes your acceptance of the revised terms.

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2. ELIGIBILITY

You must be at least eighteen (18) years of age to use the App. By using the App, you represent and warrant that:

- You are at least 18 years of age;
- You have the legal capacity to enter into a binding agreement;
- You are not prohibited from using the App under applicable law; and
- All information you provide in connection with the App is accurate, current, and complete.

If you are using the App on behalf of a business or other legal entity, you represent that you have the authority to bind that entity to this Agreement.

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3. NATURE OF THE APP — ARTIFICIAL INTELLIGENCE DISCLOSURE

THE APP UTILIZES ARTIFICIAL INTELLIGENCE ("AI") TECHNOLOGY TO GENERATE RECOMMENDATIONS, ANALYSES, SCHEDULES, AND OTHER INFORMATIONAL CONTENT RELATED TO AQUATIC ANIMAL AND PLANT CARE AND MAINTENANCE.

You expressly acknowledge and agree to all of the following:

- The App is powered by AI systems that generate responses based on patterns in data. AI-generated content may contain errors, omissions, inaccuracies, or outdated information.
- AI recommendations provided through the App are inherently probabilistic and may not be appropriate for your specific animals, tank conditions, or circumstances.
- The App does not replace the judgment of a licensed veterinarian, marine biologist, aquatic specialist, or other qualified professional.
- Aquaria AI does not guarantee, warrant, or represent the accuracy, completeness, reliability, or fitness for any particular purpose of any AI-generated content.
- AI technology is continuously evolving, and results may vary. The App may produce different outputs for similar inputs.

ALL CONTENT GENERATED BY THE APP IS PROVIDED FOR INFORMATIONAL PURPOSES ONLY. IT IS THE SOLE RESPONSIBILITY OF THE AUTHORIZED USER TO INDEPENDENTLY VERIFY THE ACCURACY AND SAFETY OF ANY SUGGESTION, RECOMMENDATION, OR INFORMATION PROVIDED BY THE APP BEFORE TAKING ANY ACTION.

3.1 Use of Anonymized and Aggregated Data

By using the App, you grant Aquaria AI a perpetual, irrevocable, royalty-free right to collect, use, and process anonymized or aggregated data derived from your use of the App — including but not limited to care patterns, tank parameters, AI interaction data, and usage behavior — for the purposes of improving the App, developing new features, and enhancing the performance and accuracy of AI models. Such anonymized or aggregated data will not identify you personally and will not be shared with third parties in a form that identifies you.

You may opt out of your data being used for AI model training and service improvement purposes by contacting us at info@aquaria-ai.com. Opting out does not affect the core functionality of the App or our right to use data that has already been anonymized and aggregated prior to receipt of your opt-out request.

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4. NOT PROFESSIONAL ADVICE

Nothing contained in the App, including any AI-generated output, constitutes veterinary advice, medical advice, scientific advice, or any other form of professional advice. The App is not a substitute for professional consultation with a licensed veterinarian or aquatic animal and plant care specialist.

In the event that your animal exhibits signs of illness, distress, or abnormal behavior, you should immediately consult a licensed veterinarian. You should not delay seeking professional care based on information provided by the App.

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5. USER RESPONSIBILITIES

As a condition of using the App, you agree that you are solely and exclusively responsible for:

- The health, welfare, safety, and well-being of all animals in your care;
- Independently verifying the accuracy and appropriateness of any recommendation or suggestion provided by the App before acting upon it;
- Ensuring that any action you take is safe for your animals, yourself, other persons, and property;
- Complying with all applicable federal, state, and local laws, regulations, and ordinances governing the ownership, care, and maintenance of aquatic animals and plants;
- Maintaining appropriate conditions for your animals consistent with accepted standards of aquatic husbandry and plant care; and
- Securing your account credentials and ensuring that only authorized individuals access your account.

The App is a supplementary informational tool only. Your independent judgment and responsibility as an animal owner, plant keeper, or caretaker is not diminished or replaced by your use of the App.

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6. PROHIBITED USES

You agree that you will not use the App, directly or indirectly, for any of the following purposes:

- Any illegal or unauthorized purpose, including but not limited to violation of any federal, state, or local law or regulation;
- The illegal trade, transport, or possession of protected, endangered, or prohibited aquatic species or plants;
- Cruelty to animals or any conduct that causes unnecessary suffering to any animal;
- Uploading, transmitting, or sharing content that is unlawful, defamatory, obscene, harmful, threatening, abusive, harassing, or otherwise objectionable;
- Infringing the intellectual property rights of Aquaria AI or any third party;
- Attempting to gain unauthorized access to any portion of the App or its underlying systems;
- Reverse engineering, decompiling, disassembling, or otherwise attempting to derive the source code or underlying algorithms of the App;
- Using the App to transmit malicious code, viruses, or any technology that could harm Aquaria AI or its users;
- Scraping, data mining, or otherwise extracting data from the App without express written permission;

- Impersonating any person or entity or misrepresenting your affiliation with any person or entity;
- Sharing another user's private messages, personal information, or content without that user's express consent;
- Using any community or social feature of the App to solicit, groom, exploit, or engage in inappropriate communications with minors; and
- Coordinating or facilitating illegal animal trade, smuggling, or any unlawful commerce through any feature of the App.

Violation of any of the above may result in immediate termination of your access to the App, and may subject you to civil and/or criminal liability.

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7. USER-GENERATED CONTENT AND PHOTO UPLOADS

7.1 License Grant — Private Uploads

The App allows you to upload photographs, images, and other content privately for the purpose of obtaining AI-generated analysis and recommendations ("Private User Content"). By uploading Private User Content, you grant Aquaria AI LLC a non-exclusive, royalty-free, perpetual, irrevocable, worldwide license to use, reproduce, store, process, and analyze such content solely for the purposes of:

- Operating and improving the App and its AI systems; and
- Developing and training AI models.

Private User Content is not displayed publicly on the App unless you affirmatively choose to share it through a social or community feature, if and when such features are available.

7.2 License Grant — Publicly Shared Content

To the extent the App offers social or community features, if and when you choose to share photographs, images, or other content publicly within those features ("Public User Content"), you grant Aquaria AI LLC a broader non-exclusive, royalty-free, perpetual, irrevocable, worldwide, sublicensable, and transferable license to use, reproduce, modify, adapt, publish, distribute, publicly display, and otherwise exploit such Public User Content for any lawful business purpose, including:

- Operating and improving the App and its features;
- Developing and training AI models;
- Marketing, promotional, and advertising materials across any media, channel, or platform; and
- Internal research and development purposes.

7.3 Promotional Use

You expressly acknowledge and agree that Aquaria AI LLC may use photographs and images you share publicly through any social or community feature of the App in promotional and

marketing materials, including but not limited to social media, website content, advertising campaigns, and press materials. Privately uploaded images used solely for AI analysis will not be used for promotional purposes without your separate consent. If you do not wish publicly shared images to be used for promotional purposes, you should not share such images through any public feature of the App.

7.4 Representations Regarding User Content

By uploading or sharing any User Content, you represent and warrant that:

- You own or have the necessary rights, licenses, and permissions to submit the content and to grant the licenses described herein;
- Your content does not violate the privacy rights, publicity rights, intellectual property rights, or any other rights of any person or entity;
- Your content does not contain material that is unlawful, harmful, or otherwise objectionable; and
- You have obtained all necessary consents from any identifiable individuals appearing in your content.

7.5 Content Removal

You may request removal of your User Content at any time by contacting us. However, you acknowledge that removed content may persist in cached, archived, or backup copies for a period of time, and that content already shared with or re-shared by other users cannot be recalled or deleted by Aquaria AI.

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8. NOTIFICATIONS AND SCHEDULED REMINDERS

The App may provide push notifications, scheduled reminders, and automated alerts related to aquatic animal and plant care tasks (collectively, "Notifications"). By enabling Notifications, you acknowledge and agree that:

- Notifications are provided as a convenience feature only and do not constitute a guarantee of any animal or plant health or care outcome;
- Aquaria AI does not warrant the accuracy, timeliness, or delivery of any Notification;
- Technical failures, device limitations, network interruptions, or software errors may result in Notifications being delayed, missed, or incorrectly delivered;
- You are solely responsible for establishing and maintaining appropriate care routines for your animals, independent of any Notification received or not received from the App; and
- Aquaria AI shall not be liable for any harm, loss, or damage arising from your reliance on, or failure to receive, any Notification.

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9. THIRD-PARTY SERVICE PROVIDERS

The App may integrate with or rely upon third-party service providers, including artificial intelligence model providers, cloud infrastructure providers, and other technology vendors ("Third-Party Providers"). You acknowledge and agree that:

- Aquaria AI LLC expressly disclaims all liability for the acts, omissions, errors, service interruptions, or outputs of any Third-Party Provider;
- Third-Party Providers are governed by their own terms of service and privacy policies, which you are encouraged to review;
- Aquaria AI does not control and is not responsible for the content, accuracy, or conduct of Third-Party Providers; and
- The availability or performance of the App may be affected by Third-Party Provider limitations or outages, for which Aquaria AI accepts no liability.

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10. SOCIAL AND COMMUNITY FEATURES

NOTE: The provisions of this Section apply if and when Aquaria AI makes social or community features available within the App. These terms are included prospectively and shall become operative upon the activation of such features. Their inclusion does not represent that such features are currently available.

10.1 Description of Social Features

To the extent the App offers social or community features (collectively, "Social Features"), the nature and scope of those features may vary over time at Aquaria AI's sole discretion. Social Features currently consist of: (a) the ability to share a single photograph to a community feed accompanied by a short caption; and (b) the ability for other users to respond to shared photographs using a curated set of positive emoji reactions. Aquaria AI reserves the right to expand, modify, or discontinue Social Features at any time. Any material changes to Social Features will be reflected in an updated version of these Terms, and your continued use of Social Features following such changes constitutes your acceptance of the updated Terms.

10.2 Photo Sharing — Technical Requirements and Restrictions

When sharing photographs through Social Features, the following technical requirements and restrictions apply:

- Maximum file size: 10MB per image;
- Accepted file formats: JPEG, PNG, and HEIC/HEIF (HEIC/HEIF files are automatically converted upon upload);
- One photograph per post;
- Captions are limited in character length as specified in the App; and
- Responses from other users are limited to a curated set of positive emoji reactions as determined by Aquaria AI. No open text responses are permitted.

10.3 Acceptable Use of Social Features

You agree that photographs and captions shared through Social Features will relate to aquatic animals, aquatic plants, aquariums, or aquatic care. You shall not share photographs or captions that:

- Depict animal cruelty, abuse, neglect, or suffering;
- Are sexually explicit, graphic, violent, or otherwise inappropriate for a general audience;
- Promote or glorify the illegal capture, trade, or trafficking of protected or exotic species;
- Contain advertising, solicitation, or unauthorized commercial content; or
- Violate any applicable law or any provision of this Agreement.

10.4 Content Reporting, Moderation, and Admin Review

The App provides users with the ability to flag photographs they believe violate this Agreement or are otherwise inappropriate. Flagged content is automatically hidden from public visibility pending review by Aquaria AI administrators. You acknowledge and agree that:

- Aquaria AI reserves the right, in its sole discretion, to remove, permanently disable, or restore any photograph following admin review, without notice or liability;
- Aquaria AI does not guarantee any specific review timeframe for flagged content;
- Submitting a flag report does not guarantee removal of the reported content;
- Repeated posting of content that violates this Agreement may result in suspension or permanent termination of your access to Social Features or the App; and
- Aquaria AI is not liable for any harm arising from content that has not yet been reviewed or from any delay in the review process.

10.5 No Liability for User Content

TO THE FULLEST EXTENT PERMITTED BY LAW, AQUARIA AI EXPRESSLY DISCLAIMS ALL LIABILITY FOR PHOTOGRAPHS OR CAPTIONS POSTED BY USERS THROUGH SOCIAL FEATURES, INCLUDING BUT NOT LIMITED TO ANY HARM, OFFENSE, OR DAMAGE ARISING FROM EXPOSURE TO SUCH CONTENT PRIOR TO ITS REVIEW OR REMOVAL.

10.6 Age Restriction for Social Features

Social Features are intended solely for users who are eighteen (18) years of age or older. Any user found to be under the age of eighteen using Social Features will have their access to such features immediately terminated. You agree not to facilitate access to Social Features by any person under the age of eighteen.

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11. DISCLAIMER OF WARRANTIES

THE APP IS PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED. TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, AQUARIA AI LLC EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO:

- WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT;
- WARRANTIES THAT THE APP WILL BE UNINTERRUPTED, ERROR-FREE, SECURE, OR FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS;
- WARRANTIES AS TO THE ACCURACY, RELIABILITY, COMPLETENESS, OR TIMELINESS OF ANY CONTENT, INCLUDING AI-GENERATED CONTENT OR CONTENT POSTED BY OTHER USERS;
- WARRANTIES THAT SOCIAL OR COMMUNITY FEATURES WILL BE FREE FROM ABUSIVE, HARMFUL, OR OFFENSIVE CONTENT; AND
- WARRANTIES THAT THE APP WILL MEET YOUR REQUIREMENTS OR EXPECTATIONS.

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12. LIMITATION OF LIABILITY AND WAIVER

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, AQUARIA AI LLC, ITS MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, AGENTS, CONTRACTORS, LICENSORS, AND SUCCESSORS (COLLECTIVELY, "AQUARIA AI PARTIES") SHALL NOT BE LIABLE FOR ANY CLAIM, DAMAGE, LOSS, OR EXPENSE OF ANY KIND, WHETHER BASED IN CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE.

WITHOUT LIMITING THE FOREGOING, THE AQUARIA AI PARTIES EXPRESSLY DISCLAIM AND SHALL HAVE NO LIABILITY FOR:

- THE ILLNESS, INJURY, DEATH, OR LOSS OF ANY ANIMAL, INCLUDING BUT NOT LIMITED TO FISH, INVERTEBRATES, CORALS, PLANTS, OR ANY OTHER AQUATIC ORGANISM;
- ANY PERSONAL INJURY, BODILY HARM, OR DEATH OF ANY HUMAN BEING ARISING FROM OR IN CONNECTION WITH USE OF THE APP OR ACTIONS TAKEN IN RELIANCE ON APP CONTENT;
- DAMAGE TO PROPERTY OF ANY KIND, INCLUDING BUT NOT LIMITED TO TANKS, AQUARIUM EQUIPMENT, REAL PROPERTY, OR PERSONAL PROPERTY;
- ANY FINANCIAL LOSS, INCLUDING COSTS OF VETERINARY CARE, REPLACEMENT OF ANIMALS, OR DAMAGE TO EQUIPMENT;
- ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES;
- RELIANCE ON ANY AI-GENERATED RECOMMENDATION, SCHEDULE, NOTIFICATION, OR OTHER APP CONTENT;
- HARM RESULTING FROM FOLLOWING ADVICE OR RECOMMENDATIONS SHARED BY ANOTHER USER THROUGH ANY SOCIAL OR COMMUNITY FEATURE;
- EMOTIONAL DISTRESS, REPUTATIONAL HARM, OR PRIVACY VIOLATIONS CAUSED BY ANOTHER USER THROUGH ANY SOCIAL OR COMMUNITY FEATURE;
- DATA EXPOSURE OR PRIVACY BREACHES RESULTING FROM USER-TO-USER SHARING OR CONDUCT; AND

- ANY ACTION OR INACTION TAKEN BY ANY USER, THIRD PARTY, OR ANIMAL AS A RESULT OF USE OF THE APP.

YOU EXPRESSLY WAIVE ANY AND ALL CLAIMS AGAINST THE AQUARIA AI PARTIES ARISING FROM OR RELATED TO YOUR USE OF THE APP OR ANY ACTIONS TAKEN BY YOU IN CONNECTION WITH THE APP. THIS WAIVER APPLIES TO ALL HARMS AND LOSSES WHATSOEVER, WHETHER TO HUMANS, ANIMALS, OR PROPERTY.

Some jurisdictions do not allow the exclusion or limitation of certain damages. In such jurisdictions, the liability of the Aquaria AI Parties shall be limited to the fullest extent permitted by applicable law.

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13. INDEMNIFICATION

You agree to defend, indemnify, and hold harmless the Aquaria AI Parties from and against any and all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:

- Your use of or access to the App, including any Social Features;
- Any action or decision you make in reliance on App content or content shared by other users;
- Your violation of this Agreement;
- Your violation of any applicable law, rule, or regulation;
- Your User Content, including any content you share through Social Features;
- Any harm you cause to another user through your conduct on the App; or
- Any harm caused to any person, animal, or property as a result of your actions.

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14. INTELLECTUAL PROPERTY

All content, features, functionality, design elements, source code, and technology comprising the App, including but not limited to text, graphics, logos, icons, audio, and software, are the exclusive property of Aquaria AI LLC or its licensors and are protected by applicable United States and international copyright, trademark, patent, and other intellectual property laws.

Nothing in this Agreement grants you any right, title, or interest in or to the App or its intellectual property, except the limited license to use the App in accordance with this Agreement. You may not reproduce, distribute, modify, create derivative works of, publicly display, or commercially exploit any portion of the App without Aquaria AI's express written consent.

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15. PRIVACY

Your use of the App is subject to Aquaria AI's Privacy Policy, which is incorporated herein by reference. By using the App, you consent to the collection, use, and sharing of your information as described in the Privacy Policy. The Privacy Policy addresses, among other things, what information is visible to other users, direct message retention, and data handling upon account deletion. The Privacy Policy is available within the App and on the Aquaria AI website.

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16. SECTION 230 NOTICE

> *NOTE: The provisions of this Section apply if and when Aquaria AI makes social or community features available within the App. These terms are included prospectively and shall become operative upon the activation of such features. Their inclusion does not represent that such features are currently available.*

To the extent the App offers Social Features that host or transmit user-generated content, Aquaria AI may be entitled to protections under Section 230 of the Communications Decency Act (47 U.S.C. § 230), which generally provides immunity to interactive computer service providers for content created by third-party users. Nothing in this Agreement waives or limits any such immunity available to Aquaria AI under applicable law.

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17. TERMINATION

Aquaria AI reserves the right, in its sole discretion, to suspend or terminate your access to the App, including any Social Features, at any time, with or without notice, for any reason, including but not limited to violation of this Agreement or conduct deemed harmful to other users or the community. Upon termination, your right to use the App will immediately cease.

All provisions of this Agreement that by their nature should survive termination — including but not limited to Sections 3, 6, 7, 11, 12, 13, and 19 — shall survive termination.

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18. MODIFICATIONS TO TERMS

Aquaria AI reserves the right to modify this Agreement at any time. We will provide notice of material changes by updating the effective date at the top of this document and, where appropriate, by providing additional notice within the App, including upon the activation of Social Features. Your continued use of the App after such modifications constitutes your acceptance of the revised Agreement. You are responsible for reviewing this Agreement periodically.

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19. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the State of New Jersey, without regard to its conflict of law principles. Any dispute, claim, or controversy arising out of or relating to this Agreement or your use of the App shall be subject to the exclusive jurisdiction of the state and federal courts located in the State of New Jersey, and you hereby consent to the personal jurisdiction of such courts.

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20. SEVERABILITY

If any provision of this Agreement is found to be invalid, unlawful, or unenforceable by a court of competent jurisdiction, such provision shall be modified to the minimum extent necessary to make it enforceable, and the remaining provisions of this Agreement shall remain in full force and effect.

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21. ENTIRE AGREEMENT

This Agreement, together with the Privacy Policy, constitutes the entire agreement between you and Aquaria AI LLC with respect to the subject matter hereof and supersedes all prior or contemporaneous understandings, communications, or agreements, whether written or oral, relating to your use of the App.

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22. CONTACT INFORMATION

If you have any questions, concerns, or inquiries regarding these Terms and Conditions, please contact Aquaria AI LLC at:

Aquaria AI LLC

State of New Jersey, United States of America

Email: info@aquaria-ai.com

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Aquaria AI LLC is a limited liability company formed in the State of New Jersey.